

**ATTACHMENT 16 – RESPONSE LETTER FROM BECHTEL / PARSONS
BRINCKERHOFF (AUTHORIZED REPRESENTATIVE) TO MODERN
CONTINENTAL COMPANY DATED JANUARY 7, 2000**
(3 pages)



Massachusetts Turnpike Authority
Central Artery/Tunnel Project

January 7, 2000

Letter No.: C09B2-0498
File No.: CN-9.09B2.02
CN-9.09B2.24.22

Mr. Robert Coutts
Project Manager
Modern Continental Companies, Inc.
600 Memorial Drive
Cambridge, MA 02210

Subject: Central Artery (I-93)/Tunnel (I-90) Project
Contract No. 99119-C09B2
I-90 Seaport Access Tunnel Finishes
CP # 22 - Adhesive Anchor Testing Procedure

Reference: MCC Letter No. 0165, dated 12/29/99
B/PB Letter No. 0436, dated 12/02/99
MCC Letter No. 0139, dated 11/8/99
B/PB Letter No. 0350, dated 10/12/99

Dear Mr. Coutts:

Receipt of the above referenced letter, by which Modern Continental Construction Company (MCC) claims that the review comments as contained in Submittal Number 723.480-016 A are not consistent with the testing requirements included in the Contract Specifications, is hereby acknowledged.

The project has reviewed MCC's claim and directs your attention to Division 1 of the General Requirements and Covenants of Construction Contracts, Section 5.04 wherein it states, "Regarding materials and installation techniques introduced by a Contractor Submittal that is accepted by the Engineer, in the event of differences among contract documents, the manufacturer's written requirements and relevant codes and standards, in each instance the most stringent requirements shall apply. The Contractor shall perform the work thus specified at no increase in Contract Price or Contract Time".

In the case of the ceiling anchor bolts, the bolts failed after the ceiling panels were installed. Examination of the one anchor that has been removed, indicated that the anchor bolt was improperly installed. There is evidence that the drill hole was not brushed clean, the application of a screen tube was not utilized and the anchor was not free of dirt, oil or foreign matter. Additionally the anchors were over torqued when the ceiling supports were installed.

The calculated allowable bond strength for a properly installed adhesive anchor system is 6350 lbs. tension. MCC is required to demonstrate correct installation techniques of the adhesive anchor bolt system, therefore it is the Project's position that the re-testing of the bolts is required.

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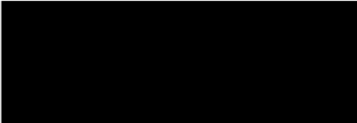
Division 1 of the General Requirements and Covenants of Construction Contracts, Sections 5.09 and 5.10 addresses inspection and removal of defective work. Retesting that confirms the manufacturer's calculated bond strength of 6350 lbs. will be covered by a subsequent Contract Modification.

Based on the above the Project has determined that no additional compensation is due the contractor for the retesting of the installed anchor bolts. Therefore, MCC's claim is hereby denied.

If you have any questions in this matter, please contact myself 350-7594 x 56.

Sincerely,

BECHTEL/PARSONS BRINCKERHOFF



Robert E. Steffy
Resident Engineer
Authorized Representative of
the Project Director

RES/CFC

cc: M. Charney